01 — Terms of use

Français (version de référence) : ../fr/01-conditions-generales-utilisation.md

Header	
Publisher	Nhill Solution, Kinshasa (Democratic Republic of the Congo)
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Status	written without review by a lawyer; recommended review points: V-02, V-10, V-12 (00 § 5). The French version is the reference text
Assumptions	H-01, H-02, H-09, H-10, H-12, H-17, H-20 (00 § 2)
Interplay	These terms govern use of the website and applications by **any person**. A business's subscription is also governed by the terms of service (document 02) and by the written proposal it accepts, which prevail in case of conflict
Publication	"Terms of use" page of the website (`website/src/pages/en/terms.html`), which takes up the essentials

1. Publisher

The nhill.online website and the Nhill Business, Nhill POS and Nhill Console applications are published by **Nhill Solution**, with its head office in Kinshasa (Democratic Republic of the Congo), hereinafter the "Publisher". Contact: info@nhill.online. Customer support: support@nhill.online.

2. Purpose and acceptance

These terms set the conditions for accessing and using the Nhill website and applications (the "Service"). Creating an account, joining a business or using the Service means accepting these terms in their current version, available at any time on the nhill.online website ("Terms of use" page).

3. Access to the Service

3.1 The Service is intended for professionals (independent workers, traders, companies, associations) for the needs of their activity.

3.2 Access requires a personal account: a valid e-mail address and a password of at least 8 characters. Users choose a password they do not use elsewhere and keep it confidential. No periodic change is imposed; users change their password if they think it has been seen or guessed.

3.3 An account is strictly personal. Sharing an account between several people is prohibited: each employee receives their own access, which lets the activity log attribute each action to its author.

3.4 The Service works with an Internet connection. The functions available depend on the business's plan: a function not included in its plan is not offered to its users.

3.5 The Publisher may suspend an account in case of use contrary to these terms or to the acceptable use policy (document 08), after warning the user except in an emergency (security, fraud, order from an authority).

4. Roles

- **Business**: the customer company (trial or subscription); its account holder and its administrators manage the team and the rights.
- **User**: any person with an account attached to a business.
- **Publisher**: operates the server and provides support. Its team does not consult the businesses' customers, products or documents; it sees overall usage figures, and each consultation appears in the business's activity log (privacy policy, document 03).

5. User obligations

Users undertake to: provide accurate information; use the Service in accordance with the law, in particular tax and commercial law; not attempt to access another business's data; not disrupt the Service; comply with the acceptable use policy (document 08).

6. Documents produced by the Service

6.1 The invoices, quotes, credit notes, receipts and reports produced by Nhill are **management documents**. Nhill **is not an invoicing device approved or standardised by a tax administration**, in particular by the General Tax Directorate of the DRC, and is not connected to any electronic fiscal device.

6.2 Each business remains responsible for its tax and accounting obligations, in particular the notices on its invoices and the use of a fiscal device where its country requires one. Nhill lets it record the reference of the standardised invoice for reconciliation.

6.3 The amounts calculated by the Service (taxes, totals, estimated margins) depend on the settings entered by the business; users check these settings (rates, tax profiles) with their adviser.

7. Intellectual property

7.1 The Service, its software, interfaces, the name "Nhill" and its logos belong to the Publisher or its licensors. No right is granted to users beyond the right of use provided by the application licence (document 12) and the terms of service (document 02).

7.2 The data entered by the business belongs to it. The Publisher uses it only to provide the Service (documents 02 and 06).

7.3 Open-source components included in the applications (for example Qt, under the LGPL v3) remain subject to their own licences, listed with the applications.

8. Availability and liability

8.1 The Publisher uses reasonable means to keep the Service available and reliable; no availability figure is guaranteed (document 07).

8.2 The Publisher is not liable for unavailability caused by the user's Internet access, equipment or power supply, nor for the consequences of an incorrect entry or misuse of the Service. The Publisher's liability towards a subscribing business is governed by the terms of service (document 02, article 10).

9. Personal data

The processing of personal data is described in the privacy policy (document 03).

10. Changes to these terms

The Publisher may change these terms. The version in force and its date appear on the website; subscribing businesses are told about significant changes before they take effect, by a message in the application or by e-mail.

11. Governing law and disputes

These terms are governed by the law of the Democratic Republic of the Congo. In case of dispute, the parties first look for an amicable solution; failing that, the competent courts of Kinshasa have jurisdiction. These choices do not deprive a user of the protection of the mandatory rules of their country, in particular on consumer protection and personal data.

12. Contact

info@nhill.online; customer support: support@nhill.online.